

TENTATIVE RULING

Case: Iden v. FCA US, LLC et al.
Case No. CV2024-2815

Hearing Date: July 9, 2026 **Department Thirteen** **9:00 a.m.**

Plaintiffs Craig Iden and Jason Miller (collectively, “plaintiffs”) filed an untimely opposition. (Code Civ. Proc., § 437c, subd. (b)(2) [all papers opposing a motion for summary judgment must be filed with the court and a copy served on each party no less than twenty days before the hearing].) The Court declines to consider plaintiffs’ very late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

The Court rules on defendants FCA US, LLC (“FCA”) and Hoblit Chrysler Jeep Dodge’s (“Hoblit”) (collectively, “defendants”) motion for summary adjudication as follows:

- Defendants’ motion for summary adjudication as to the first cause of action (Civil Code section 1793.2(d)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs failed to present the subject vehicle for repair during the express warranty period and there was never a warranty repair made to subject vehicle during the warranty period. (Civ. Code § 1793.2, subd. (d); *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 [“The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.”]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862.)
- Defendants’ motion for summary adjudication as to the second cause of action (Civil Code section 1793.2(b)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to service or repair the subject vehicle within 30-days. (Civ. Code § 1793.2, subd. (b); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the third cause of action (Civil Code section 1793.2(a)(3)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Civ. Code § 1793.2, subd. (a)(3); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)

- Defendants’ motion for summary adjudication as to the fourth cause of action (breach of the implied warranty of merchantability) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs cause of action for breach of the implied warranty of merchantability is time-barred. (Civ. Code §§ 1791.1, 1794, 1795.5; *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1306 [the statute of limitations for breaches of the implied warranty of merchantability is four years]; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495; UMFs 1, 10.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the fifth cause of action (negligent repair) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The elements to plead a negligent repair cause of action is the same as that for a cause of action for negligence: (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair to Hoblit, thus there is no evidence that Hoblit breached its duty to plaintiffs. (*Ibid.*; UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the sixth cause of action (fraudulent inducement - concealment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) The Court finds that defendants have met their initial burden to show that that plaintiffs did not have a transactional relationship with FCA when they purchased the subject vehicle to establish a duty to disclose. (*Ibid* “[s]uch a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”]; *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276 , 311-312; UMF 1.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)

Based on the Court’s rulings above, defendants’ motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The trial readiness conference, set for July 20, 2026, and the jury trial, set for August 10, 2026, are **VACATED**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Singh v. G & S Gasoline, Inc.**
 Case No. CV2026-1510

Hearing Date: **July 9, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, the hearing on petitioner Gurdev Singh's petition for writ of mandate to compel inspection and copying of corporate books and records is **CONTINUED** to **September 3, 2026**, at 9:00 a.m. in Department Fourteen.